AMENDED IN SENATE MAY 29, 2025

SENATE BILL No. 509

Introduced by Senator Caballero
(Coauthors: Assembly Members Bains and Soria)

February 19, 2025

An act to add Section 8588.13 to the Government Code, relating to state government.

LEGISLATIVE COUNSEL'S DIGEST

SB 509, as amended, Caballero. Office of Emergency Services: training: transnational repression.

Existing law, the California Emergency Services Act, establishes the Office of Emergency Services and vests the office with responsibility for the state's emergency and disaster response services for natural, technological, or manmade disasters and emergencies, as specified. Existing law establishes the California Specialized Training Institute within the Office of Emergency Services.

This bill would require the Office of Emergency Services, through the California Specialized Training Institute, to develop transnational repression recognition and response training, as specified.

Vote: majority. Appropriation: no. Fiscal committee: yes. State-mandated local program: no.

The people of the State of California do enact as follows:

SECTION 1. The Legislature hereby finds and declares all of the following:

(a) Transnational repression against individuals and organizations that live outside their countries of origin, prominent

or vocal antiregime figures, and persons who provide aid and support to dissidents and religious and ethnic minority communities is a human rights violation that seeks to stifle dissent and enhance control over exile, activist, emigrant, and diaspora communities.

(b) Transnational repression is any action taken by government officials, diplomatic personnel, and proxies through acts such as extrajudicial killings, physical assaults, unexplained disappearances, physical or online surveillance or stalking, intimidation, digital threats such as cyberattacks, targeted surveillance and spyware, and online harassment, and coercion such as harassment of, or threats of harm to, family and associates both within and outside the United States.

(c) Transnational repression is a threat to individuals, democratic institutions, the exercise of rights and freedoms, and national security and sovereignty.

(d) The spread of digital technologies provides new tools for censoring, surveilling, and targeting individuals deemed to be threats across international borders, especially dissidents pushed abroad who themselves rely on communications technology to amplify their messages, which can often lead to physical attacks and coercion by proxy, including individuals radicalized by state-sponsored propaganda or ideology that targets ethnic or religious minorities.

(e) Authoritarian actors routinely attempt to deter and silence the voices of dissident and exile communities at international fora, as documented by the United Nations Assistant Secretary-General for Human Rights in the Secretary-General's annual report on reprisals to the United Nations Human Rights Council.

(f) It is the policy of the State of California to do all of the following:

(1) Protect persons and organizations in the state from transnational repression.

(2) Pursue criminal prosecutions, as appropriate, against those who engage in transnational repression.

(3) Provide support services for victims and communities that may credibly be targeted in transnational repression.

(4) Meaningfully hold accountable foreign governments engaged in transnational repression and limit their ability to influence state policy or public opinion.

(5) Coordinate actions to enhance and complement any federal laws or regulations related to transnational repression.

SEC. 2. Section 8588.13 is added to the Government Code, to read:

8588.13. (a) On or before July 1, 2026, the Office of Emergency Services, through its California Specialized Training Institute, and in consultation with the Commission on Peace Officer Standards and Training, shall develop a transnational repression recognition and response training. The training shall be regularly updated to address emerging threats and specific information on tactics used by specific foreign governments.

(b) The training shall include, but not be limited to, all of the following:

(1) How to identify different tactics of transnational repression in physical and nonphysical forms, including, but not limited to, tools of digital surveillance and other cybertools frequently used to carry out transnational repression activities.

(2) Those governments that are known to employ transnational repression, including those who use it most frequently and those who use it most egregiously.

(3) Best practices for appropriate local and state law enforcement prevention, reporting, and response tactics.

(4) Information about communities targeted by transnational repression and misinformation that may be perpetuated by foreign governments, including, but not limited to, improper labeling of dissidents as terrorist threats and notice abuses effectuated through international law enforcement cooperatives, including the International Criminal Police Organization (INTERPOL).

(5) Any guidance, best practices, definitions, or identified trends or threats issued by federal authorities on national security and public safety.

(6) Culturally competent outreach to impacted diaspora communities and subject matter experts in order to support effective and unbiased law enforcement responses to transnational repression.

(c) As used in this section, the following terms have the following meanings:

(1) “Human rights” means the free exercise or enjoyment of any right or privilege secured to an individual by the California

Constitution or the laws of this state or by the United States Constitution or the laws of the United States, in whole or in part.

(2) "Transnational repression" means any action taken by a foreign government or an agent of a foreign government involving the transgression of national borders through physical, digital, or analog means in order to intimidate, silence, coerce, harass, or harm members of diaspora and exile communities or organizations that advocate for individuals in diaspora or exile communities in order to prevent the exercise of their human rights. "Transnational repression" includes gathering information about individuals in diaspora and exile communities or organizations that advocate for individuals in diaspora or exile communities on behalf of a foreign government with the intent to use that information to harass, intimidate, or harm an individual in order to prevent their exercise of their human rights.

O